

SENATE No. 3083

Senate, May 7, 2026 -- (Filed by Mr. Tarr et al) Order relative to requesting the opinions of the Honorable Justices of the Supreme Judicial Court on important questions of law relative to “An Act promoting rule of law, oversight, trust and equal constitutional treatment,” as pending before the Massachusetts State Senate.

The Commonwealth of Massachusetts



Senate, May 07, 2026.

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 *Ordered*, Whereas, House 5316, entitled “An Act promoting rule of law, oversight, trust
2 and equal constitutional treatment,” is pending before the Massachusetts State Senate; and

3 Whereas, Section 1 of Senate Amendment No. 3072 to House No. 5316 creates a state
4 law cause of action allowing individuals to bring suit in state court against federal officers acting
5 under color of federal law for alleged violations of rights secured by the Constitution of the
6 United States; and

7 Whereas, Congress has enacted statutes governing liability for such violations by federal
8 officers; and

9 Whereas, Section 1 therefore raises substantial questions under the Supremacy Clause of
10 the United States Constitution, including whether Congress has occupied the field of federal
11 officer liability through the Federal Tort Claims Act, the Federal Employees Liability Reform
12 and Tort Compensation Act of 1988 (Westfall Act), and related federal remedies, and whether a
13 state law cause of action against federal officers is barred by the doctrine of intergovernmental
14 immunity or constitutes an obstacle to federal objectives; and

15 Whereas, Senate Amendment No. 3072 to House No. 5316 also imposes restrictions on
16 civil immigration enforcement, including restrictions on civil arrests in childcare facilities,
17 schools, health care facilities, and courts, and

18 Whereas, these restrictions raise questions under the Supremacy Clause as to whether
19 they are preempted by federal immigration law under the doctrines of field preemption or
20 obstacle preemption as articulated in *Arizona v. United States*, 567 U.S. 387 (2012), and related
21 cases; and

22 Whereas, the Senate is of the opinion that such grave doubts create important questions of law
23 and constitutional interpretation that should be resolved before final legislative action is taken;
24 now therefore be it

25 ORDERED, That the opinions of the Honorable Justices of the Supreme Judicial Court
26 be required by the Senate on the following important questions of law:

27 1. Federal Preemption of Section 1 (State Cause of Action Against Federal Officers)

28 Does Section 1 of Senate Amendment No. 3072—which creates a state law cause of
29 action allowing individuals to sue federal officers in state court for alleged violations of rights

30 secured by the Constitution of the United States—violate the Supremacy Clause of the United
31 States Constitution, where Congress has enacted a comprehensive federal framework governing
32 liability for federal officers, including the Federal Tort Claims Act, the Federal Employees
33 Liability Reform and Tort Compensation Act of 1988 (Westfall Act), and the limited federal
34 constitutional remedies recognized under *Webster Bivens v. Six Unknown Named Agents of*
35 *Federal Bureau of Narcotics*, 403 U.S. 388,(1971), such that Section 1 may be preempted under
36 the doctrines of field preemption, obstacle preemption, or intergovernmental immunity?

37 2. Federal Preemption of the Bill’s Restrictions on Civil Immigration Enforcement

38 Do the restrictions imposed by Senate Amendment No. 3072 on civil arrests—including
39 restrictions on civil immigration arrests in childcare facilities, schools, health care facilities, and
40 courts—violate the Supremacy Clause of the United States Constitution under the doctrines of
41 field preemption or obstacle preemption?

42 3. Obstacle Preemption Under *Arizona v. United States*

43 Does Senate Amendment No. 3072, or any of its restrictions, conflict with federal
44 immigration law or federal objectives in a manner that would render the bill, or any part of it,
45 invalid under the doctrine of obstacle preemption as articulated in *Arizona v. United States*, 567
46 U.S. 387 (2012)?